

NRI CHILD CUSTODY IN INDIA: LAWS, FOREIGN COURT ORDERS, PERSONAL LAWS AND THE WELFARE OF THE CHILD

“When parents live in different countries, which country decides where the child should live?”

This question has become increasingly important with the growth of NRI marriages, international families, cross-border relocation and marriages between persons belonging to different religious communities.

An NRI child-custody dispute is rarely a simple contest between a mother and father. It may simultaneously involve **Indian guardianship law, personal law, foreign custody orders, ordinary residence, citizenship, immigration status, jurisdiction, constitutional remedies and the welfare of the child.**

The controversy popularly associated with the film *Mrs Chatterjee vs Norway* brought these issues into public attention. However, the film must be distinguished from the actual proceedings. The Norwegian Government has stated that the film was inspired by an actual case but contains creative liberties and should not be treated as a judicial record.

For an Indian court, the central question is ultimately not:

Which parent has the stronger legal claim?

It is:

What arrangement best serves the welfare and best interests of the child?

That principle runs through Indian custody jurisprudence involving Hindu, Muslim, Christian, Parsi, interfaith and NRI families.

What Is NRI Child Custody?

An **NRI child-custody dispute** may arise where:

- one or both parents reside abroad;
- the child was born or raised outside India;
- the child holds foreign citizenship;
- the parents separate abroad;
- one parent brings the child to India;
- a foreign court has passed a custody or return order; or
- One parent proposes permanent international relocation.

The dispute becomes more complex where the child has an established educational, social, cultural and family life in another country.

Illustration

An Indian couple has lived in the United States for eight years. Their child was born there and attends school there. Following marital differences, the mother brings the child to India.

An Indian court may have to consider:

1. where the child ordinarily resides;
2. whether foreign proceedings are pending;
3. whether a foreign custody order exists;
4. how the child came to India;
5. the child's relationship with each parent;
6. education and stability; and above all, the child's welfare.

Foreign citizenship alone does not determine custody. Bringing the child to India does not automatically settle jurisdiction or custody either.

The Norway–Bhattacharya Dispute: A Major Lesson in International Child Custody

The real-life dispute associated with *Mrs Chatterjee vs Norway* concerned **Sagarika Bhattacharya and Anurup Bhattacharya**, an Indian family living in Norway.

Norwegian child-welfare authorities became involved in the care of their children, leading to substantial public and diplomatic attention in India. The dispute was eventually resolved through cooperation involving Indian and Norwegian authorities.

The important legal lesson is not simply whether India or Norway was “right”, or whether the mother or father had the stronger claim.

The central lesson is that **international child disputes must ultimately be examined from the child's perspective.**

Relevant considerations may include:

- physical safety;
- emotional security;
- psychological well-being;
- educational continuity;
- stability of residence;
- relationship with both parents;
- relationship with grandparents and caregivers;
- ordinary residence;
- cultural and social environment; and
- consequences of moving the child between countries.

The film can therefore serve as a public introduction to NRI custody issues, but **it should never be cited as though it were itself a reported judicial decision**.

The Statutory Framework for NRI Child Custody in India

There is no single Indian statute that exhaustively governs every international child-custody dispute.

The applicable framework may include:

A. GUARDIANS AND WARDS ACT, 1890

Important provisions include:

- **Section 7** – appointment or declaration of guardian;
- **Section 9** – jurisdiction and ordinary residence;
- **Section 12** – interim protection and custody; and
- **Section 17** – matters relevant to welfare of the minor.

B. HINDU MINORITY AND GUARDIANSHIP ACT, 1956

Where Hindu personal law applies:

- **Section 6** – natural guardianship; and
- **Section 13** – welfare of the minor as the paramount consideration.

The HMGA operates alongside the Guardians and Wards Act.

C. MUSLIM PERSONAL LAW

Muslim custody disputes may involve principles concerning **hizanat/custody and guardianship**, together with the Guardians and Wards Act and the circumstances of the individual case.

The Muslim Personal Law (Shariat) Application Act, 1937 forms part of the wider personal-law framework.

D. Christian Families

For Christian families, the **Divorce Act, 1869**, particularly Sections **41–44**, contains provisions concerning custody of children in matrimonial proceedings, alongside the general guardianship framework where applicable.

E. Parsi Families

For Parsi families, the **PARSI MARRIAGE AND DIVORCE ACT, 1936**, including **Section 49 concerning custody**, may become relevant in matrimonial proceedings.

F. Interfaith and Special Marriage Act Families

Where an interfaith marriage is solemnised under the **SPECIAL MARRIAGE ACT, 1954**, **Section 38** empowers the District Court to make orders concerning custody, maintenance and education of minor children in proceedings under the Act.

Accordingly, the first question is not simply:

“Is the mother entitled to custody?”

or

“Is the father the natural guardian?”

The correct inquiry is:

What is the applicable legal framework, where does the child ordinarily reside, what proceedings exist in other jurisdictions, and what arrangement best serves the child's welfare?

GUARDIANS AND WARDS ACT, 1890:

Section 7 – Appointment or Declaration of Guardian

Section 7 enables the competent court, subject to the statutory requirements, to make an order regarding guardianship where necessary for the welfare of the minor.

Illustration

An Indian father works in Dubai while the mother lives in Chennai with their minor child.

The father's higher income does not create an automatic right to custody. The court must examine whether the proposed guardianship and custody arrangement promotes the child's welfare.

Section 9 – Ordinary Residence and Jurisdiction

Section 9 is particularly significant in NRI custody disputes.

For guardianship of the person of a minor, jurisdiction ordinarily depends upon the court where the minor **ordinarily resides**.

RUCHI MAJOO V. SANJEEV MAJOO, (2011) 6 SCC 479, is an important authority on this issue.

Illustration

A child has lived in Canada for seven years, attends school there and has an established family and social environment there.

A parent cannot necessarily create Indian jurisdiction merely by bringing the child to India for a short visit.

At the same time, foreign citizenship does not automatically deprive an Indian court of jurisdiction where Indian law otherwise confers jurisdiction.

Ordinary residence is ultimately a factual question.

Section 12 – Interim Protection and Custody

Section 12 permits interlocutory orders concerning the production and temporary custody or protection of a minor.

This can become important where there is a concern regarding:

- removal of the child;
- concealment;
- international relocation;
- disruption of an existing arrangement; or
- Non-compliance with an interim custody order.

Illustration

If one parent fears that the other will remove the child from India while custody proceedings are pending, the court may, depending upon the facts, consider appropriate interim protective directions.

Section 17 – Welfare of the Minor

Section 17 is central to custody adjudication.

The court may consider:

- age of the child;
- sex and religion, where legally relevant;
- character and capacity of the proposed guardian;
- relationship between the child and the proposed guardian;
- circumstances of the guardian; and
- intelligent preference of a sufficiently mature child.

The statutory framework therefore places **the welfare of the minor at the centre of the custody decision**.

HINDU MINORITY AND GUARDIANSHIP ACT, 1956

Where Hindu personal law applies, the HMGA becomes particularly relevant.

Section 6 – Natural Guardians

Section 6 identifies natural guardians of a Hindu minor subject to its statutory qualifications.

However:

Natural guardianship does not mean automatic physical custody.

A parent may have the status of natural guardian without automatically being entitled to have the child physically placed in that parent's care.

Section 13 – Welfare Paramount

Section 13 expressly makes **the welfare of the minor the paramount consideration** in guardianship matters.

Muslim Personal Law and NRI Child Custody

Muslim custody disputes require particular care because Muslim personal law distinguishes between **custody (hizanat)** and **guardianship**.

Traditional rules concerning custody may depend upon:

- age;
- sex;
- personal circumstances;
- applicable school of Muslim law; and
- Circumstances of the parents.

A personal-law claim should not, however, be treated as an absolute entitlement to physical custody.

GOHAR BEGAM V. SUGGI ALIAS NAZMA BEGAM

AIR 1960 SC 93; (1960) 1 SCR 597

The Supreme Court considered a mother's custody claim concerning her infant daughter and recognised the relevance of custody rights under Mohammedan law while considering the welfare of the child.

Personal-law rights are relevant, but custody remains connected with the welfare of the child.

ATHAR HUSSAIN V. SYED SIRAJ AHMED

(2010) 2 SCC 654; AIR 2010 SC 1417

The Supreme Court considered the relationship between Muslim personal law and the Guardians and Wards Act and reaffirmed the importance of the welfare of the minor.

For an NRI Muslim family, therefore, the correct approach is neither:

“The mother has hizanat, therefore custody is automatically hers.”

Nor:

“The father is the legal guardian, therefore custody is automatically his.”

The court must consider **personal law, statutory law and welfare together.**

Christian Child Custody

Christian custody disputes may involve the **Divorce Act, 1869**, the Guardians and Wards Act, 1890 and other applicable provisions depending upon the relief sought.

Sections **41–44 of the Divorce Act** specifically address custody of children in matrimonial proceedings.

Illustration

A Christian couple has lived in the United Kingdom for several years. Following separation, one parent brings the child to India.

The court may examine:

- ordinary residence;
- foreign proceedings;
- foreign custody orders;
- circumstances of relocation;
- parental relationships;
- education; and
- overall welfare.

The child's physical presence in India does not, by itself, answer where the child should ultimately live.

Parsi Child Custody

For Parsi families, the **Parsi Marriage and Divorce Act, 1936**, including Section 49 concerning custody, may become relevant in matrimonial proceedings.

Illustration

A Parsi couple and their child have been living in Canada. After separation, one parent brings the child to Mumbai.

The court may examine:

- ordinary residence;
- foreign proceedings;
- established home;
- relationship with each parent;
- education;
- family support; and
- whether remaining in India or returning abroad serves the child's welfare.

The family's religious identity may form part of the legal framework, but **the child's welfare remains controlling**.

Interfaith Marriages and the Special Marriage Act

Interfaith NRI marriages can create an additional layer of complexity.

The court may need to identify:

1. how the marriage was solemnised;
2. whether the Special Marriage Act applies;
3. the child's citizenship and legal status;
4. applicable personal-law provisions;
5. guardianship rights;
6. foreign orders;
7. ordinary residence; and
8. welfare.

Where the marriage is under the Special Marriage Act, **Section 38** specifically empowers the District Court to make appropriate orders concerning custody, maintenance and education of minor children.

Illustration

A Hindu mother and Muslim father live in Dubai. Their child attends school there. Following marital differences, the mother brings the child to India.

The court cannot simply assume that one parent's religion determines custody. The legal framework must first be identified and then applied through the overriding welfare inquiry.

The Golden Rule: Welfare of the Child Is Paramount

The most consistent principle in Indian custody jurisprudence is that **the welfare and best interests of the child are paramount**.

In **NIL RATAN KUNDU V. ABHIJIT KUNDU, (2008) 9 SCC 413**, the Supreme Court emphasised the importance of the child's physical and emotional well-being, education, health, development, surroundings and sufficiently mature wishes.

The court may therefore consider:

- physical safety;
- emotional security;
- psychological development;
- educational continuity;
- financial and caregiving stability;
- relationship with both parents;
- grandparents and extended family;
- cultural and social environment;
- child's own views;
- impact of relocation; and
- Effect of prolonged litigation.

A child is not an asset to be divided between parents.

Landmark Case Law on NRI and International Child Custody

ROSY JACOB V. JACOB A. CHAKRAMAKKAL

(1973) 1 SCC 840; AIR 1973 SC 2090

The Supreme Court treated the **welfare of the children as the dominant consideration** and recognised that custody arrangements can be modified when circumstances change and a different arrangement becomes necessary for welfare.

NRI relevance: Relocation, schooling, parental circumstances and changing needs may justify revisiting custody arrangements.

SURINDER KAUR SANDHU V. HARBAX SINGH SANDHU

(1984) 3 SCC 698

The Supreme Court stressed that custody must be determined primarily by reference to the **welfare and interests of the child**, rather than merely competing parental rights.

ELIZABETH DINSHAW V. ARVAND M. DINSHAW

(1987) 1 SCC 42

The case involved a child brought to India despite custody arrangements in the United States.

The Supreme Court gave substantial importance to welfare and the circumstances surrounding removal from the foreign jurisdiction.

Significance: It remains a foundational authority concerning **international custody and wrongful removal**.

NIL RATAN KUNDU V. ABHIJIT KUNDU

(2008) 9 SCC 413

The Supreme Court emphasised welfare as paramount and considered physical and emotional well-being, education, health, development, surroundings and the child's sufficiently mature wishes.

It provides a strong general statement of the welfare principle across custody disputes.

RAVI CHANDRAN (DR.) V. UNION OF INDIA

(2010) 1 SCC 174

The case involved an international custody dispute where a child had been brought to India from the United States while foreign custody proceedings and orders existed.

The Supreme Court considered the foreign custody order and **comity of courts**, while distinguishing between a **summary inquiry** and an **elaborate inquiry**.

The Court directed return of the child in the circumstances of that case, leaving substantive custody issues to the competent foreign jurisdiction.

A foreign order is highly relevant, but the manner in which an Indian court proceeds remains dependent on the facts and welfare of the child.

ATHAR HUSSAIN V. SYED SIRAJ AHMED

(2010) 2 SCC 654; AIR 2010 SC 1417

The Supreme Court considered Muslim personal law alongside the Guardians and Wards Act and emphasised that personal-law principles cannot displace what is conducive to the welfare of the minor.

RUCHI MAJOO V. SANJEEV MAJOO

(2011) 6 SCC 479

The case involved an Indian family connected with the United States, foreign proceedings concerning custody and the presence of the mother and child in India.

The Supreme Court considered:

- **Section 9 of the Guardians and Wards Act;**
- ordinary residence;
- foreign proceedings;
- comity; and
- visitation.

The existence of foreign proceedings did not automatically remove the responsibility of Indian courts.

Significance: A leading authority on **ordinary residence, jurisdiction, foreign proceedings, comity and visitation.**

SURYA VADANAN V. STATE OF TAMIL NADU

(2015) 5 SCC 450

The case involved children with strong connections to the United Kingdom and proceedings concerning their custody there.

The Supreme Court gave substantial weight, in the circumstances, to the children's connection with the foreign jurisdiction, foreign orders and comity.

Indian courts can direct return of children to a foreign jurisdiction where circumstances justify it.

The decision must, however, be read alongside later authorities including *Nithya Anand Raghavan* and *Lahari Sakhamuri*, which emphasise a fact-sensitive approach.

NITHYA ANAND RAGHAVAN V. STATE (NCT OF DELHI)

(2017) 8 SCC 454

The Supreme Court considered a child brought to India from a foreign jurisdiction where foreign proceedings and orders existed.

The Court explained that an Indian court may conduct either a **summary inquiry or an elaborate inquiry**, depending upon the circumstances.

A foreign custody order is important but **not automatically conclusive**.

Relevant considerations may include:

- welfare;
- ordinary residence;
- relationship with both parents;
- circumstances of removal;
- possibility of harm;
- psychological well-being; and
- overall circumstances.

Comity of courts is important, but it cannot be applied mechanically at the expense of the child's welfare.

LAHARI SAKHAMURI V. SOBHAN KODALI

(2019) 7 SCC 311

The case involved children born in the United States who were US citizens and had substantial connections with the United States.

The Supreme Court considered:

- foreign citizenship;
- foreign proceedings;
- intimate connection with the foreign country;
- comity; and
- welfare.

Significance: Foreign citizenship and foreign connection are relevant but **not independently decisive of custody**.

YASHITA SAHU V. STATE OF RAJASTHAN

(2020) 3 SCC 67

The parents had lived in the United States and their daughter was a US citizen. The mother brought the child to India while proceedings were pending in the United States.

The Supreme Court considered earlier international custody authorities and placed considerable emphasis on:

- welfare;
- meaningful relationship with both parents;
- visitation;
- parental access;
- video communication;
- international custody; and
- Habeas corpus jurisdiction.

Custody with one parent should not ordinarily become exclusion of the other parent from the child's life where meaningful contact is safe and appropriate.

Foreign Court Orders: Must an Indian Court Automatically Follow Them?

No—not automatically.

A foreign custody order is an important factor, but Indian courts have repeatedly recognised that international custody disputes cannot be resolved through mechanical enforcement of foreign orders without considering welfare and the circumstances of the case.

Factor	Legal significance
Foreign custody order	Important consideration
Foreign citizenship	Relevant but not conclusive
Ordinary residence	Important jurisdictional and factual factor
Foreign proceedings	Relevant
Comity of courts	Important judicial principle
Circumstances of removal	Highly relevant
Child's wishes	Relevant where sufficiently mature
Welfare of child	Paramount consideration

This balance emerges particularly from *Ruchi Majoo, V. Ravi Chandran, Nithya Anand Raghavan, Lahari Sakhamuri and Yashita Sahu*.

Summary Inquiry vs Elaborate Inquiry

A significant development in international custody jurisprudence is the distinction between a **summary inquiry** and an **elaborate inquiry**.

Summary Inquiry

Where circumstances permit, the court may examine whether the child should return to the jurisdiction more appropriately connected with the custody dispute.

Elaborate Inquiry

Where circumstances require a deeper examination, the court may investigate:

- welfare;
- safety;
- emotional circumstances;
- parental capability;
- schooling;
- existing caregiving arrangements;
- circumstances of removal;
- risk of harm;
- child's wishes; and
- consequences of relocation.

V. Ravi Chandran and Nithya Anand Raghavan demonstrate that there is **no universal mechanical formula** for every international custody dispute.

Does Foreign Citizenship Decide Custody?

No.

A child may have Indian citizenship, foreign citizenship, dual nationality where legally permissible, or another immigration status.

Citizenship can indicate a child's connection with a particular country, but it does not automatically confer custody upon either parent.

Lahari Sakhamuri v. Sobhan Kodali is particularly relevant.

The ultimate question remains:

What arrangement best protects the child's welfare and best interests?

Can a Parent Permanently Take an NRI Child to India?

A parent should **not unilaterally relocate a child internationally** without first considering:

- existing custody orders;
- consent requirements;
- ordinary residence;
- foreign proceedings;
- immigration consequences;
- Indian law;
- foreign law; and
- consequences of wrongful removal.

Illustration

A child has lived in Australia since birth. The mother brings the child to India without the father's consent while an Australian custody proceeding is pending.

Physical possession in India does not automatically become legal custody.

The Indian court may examine the circumstances of removal, foreign proceedings, ordinary residence and the child's welfare.

The Child's Relationship with Both Parents

Modern custody jurisprudence increasingly recognises that welfare may include maintaining a **meaningful relationship with both parents**, where contact is safe and appropriate.

This may include:

- physical visitation;
- weekend or holiday access;
- video calls;
- telephone communication;
- access to school information;
- sharing medical information;
- participation in important decisions;
- vacation arrangements; and
- contact with grandparents and extended family.

Yashita Sahu v. State of Rajasthan is particularly significant in this regard.

Senior Counsel's Approach

Do not ask only, "Who gets custody?" Ask also, "How will the child continue to have a healthy and meaningful relationship with the other parent?"

The Child's Own Wishes

Where a child is sufficiently mature to form an intelligent preference, the court may consider that preference.

However, the child's wishes are **not automatically decisive**.

The court may need to distinguish between:

- a genuine and mature preference; and

- a preference influenced by parental pressure, coaching, fear or manipulation.

The child's wishes are therefore one component of the wider welfare assessment.

Wrongful Removal and International Relocation

Cross-border removal can fundamentally alter a custody dispute.

The parent who brings the child to India may argue that:

- the child is now settled in India;
- the child has developed family relationships here;
- the child attends school here; or
- return would cause emotional disruption.

The other parent may argue that:

- removal was unauthorised;
- the child ordinarily resided abroad;
- a foreign custody order exists;
- proceedings are pending abroad; or
- the child should be restored to the foreign jurisdiction.

Indian courts have considered these competing factors in cases including:

- *Elizabeth Dinshaw*;
- *V. Ravi Chandran*;
- *Surya Vadan*;
- *Nithya Anand Raghavan*;
- *Lahari Sakhamuri*; and
- *Yashita Sahu*.

The governing approach remains **fact-specific and welfare-centred**.

What Has Changed Since the Norway Dispute?

It would be legally inaccurate to say that the Guardians and Wards Act, 1890 or Hindu Minority and Guardianship Act, 1956 was comprehensively amended specifically because of the Norway dispute.

The more significant development has been **judicial interpretation and the evolution of Supreme Court jurisprudence**.

Modern international custody analysis may require consideration of:

- Guardians and Wards Act, 1890;
- Hindu Minority and Guardianship Act, 1956;

- Muslim personal law;
- Christian custody provisions;
- Parsi custody provisions;
- Special Marriage Act, 1954;
- constitutional jurisdiction;
- foreign law;
- foreign custody orders; and
- Supreme Court jurisprudence on international custody.

The principal development has therefore been **judicial rather than a Norway-specific statutory amendment**.

How the Welfare Principle Protects the Child

A welfare-centred approach has practical consequences.

Emotional Stability

A child should not be treated as an object to be divided between competing parents.

Physical Safety

Allegations of abuse, neglect or violence require appropriate judicial attention.

Psychological Well-being

The court may consider the psychological impact of prolonged litigation and repeated relocation.

Educational Continuity

Schooling, educational development and established social surroundings may be relevant.

Stable Living Arrangements

An established home and consistent caregiving relationship can carry considerable weight.

Relationship With Both Parents

Where safe and appropriate, the child should be able to maintain meaningful relationships with both parents.

Family and Cultural Continuity

Relationships with grandparents, relatives and cultural communities may also be relevant.

When Should an NRI Parent Seek Immediate Legal Advice?

Urgent legal advice should be considered where:

- the child is about to be taken abroad;
- the child has already been removed from India;
- a foreign custody or return order exists;
- court-ordered visitation is being refused;
- permanent relocation is threatened;
- the child is being concealed;
- parallel proceedings exist in India and another country; or
- There are allegations of abuse, neglect or other risks.

International custody disputes can involve time-sensitive jurisdictional and procedural issues. Early legal assessment can therefore be strategically important.

Practical Checklist for NRI Parents

Before commencing or defending an international custody case, preserve:

1. Child's birth certificate.
2. Passport and citizenship documents.
3. Immigration records.
4. School records.
5. Medical records.
6. Foreign custody orders.
7. Indian court orders.
8. Evidence of ordinary residence.
9. Travel records.
10. Evidence concerning relocation.
11. Communications between parents.
12. Evidence concerning abuse or neglect allegations.
13. Evidence of the child's relationship with each parent.
14. Evidence concerning the child's educational and social environment.

Most importantly:

Do not unilaterally relocate a child internationally without first obtaining appropriate legal advice.

Frequently Asked Questions

1. Can an NRI parent take a child permanently to India?

Not as an automatic parental right. Existing custody orders, ordinary residence, consent, foreign proceedings, applicable law and the child's welfare must be considered.

2. Does foreign citizenship determine custody?

No. Citizenship may be relevant, but it is not conclusive.

3. Does a foreign custody order automatically bind an Indian court?

No. It is an important consideration, but the Indian court may examine welfare, removal circumstances and the overall facts.

4. Does the father's status as a natural guardian guarantee custody?

No. Natural guardianship and physical custody are distinct concepts. Welfare remains paramount.

5. Does Muslim personal law automatically give custody to the mother?

No blanket rule should be applied. The court must consider the applicable personal-law principles, statutory framework and welfare of the child.

6. Does the mother's religion automatically determine custody?

No. Religion may form part of the applicable legal framework, but it does not by itself determine custody.

7. Can a child express a preference about custody?

Yes. If sufficiently mature, the court may consider the child's intelligent preference. However, the preference is not necessarily conclusive.

8. Can a parent create Indian jurisdiction simply by bringing the child to India?

Not necessarily. Ordinary residence and the factual circumstances must be examined. Physical presence alone does not automatically determine jurisdiction.

9. What happens if the child was wrongfully removed from another country?

The court may consider the circumstances of removal, ordinary residence, foreign proceedings, existing foreign orders, the child's connections and welfare. Depending upon the facts, return to the foreign jurisdiction may be ordered.

10. Can an Indian court order the child to return to a foreign country?

Yes, in appropriate circumstances. Cases such as *Elizabeth Dinshaw, V. Ravi Chandran* and *Surya Vadan* demonstrate that return may be directed where the circumstances justify it. However, the approach is fact-specific.

11. Does custody with one parent mean the other parent loses all rights?

No. Where safe and appropriate, visitation, communication and continuing parental involvement may form part of the child's welfare-oriented custody arrangement.

12. Can video calls form part of a custody arrangement?

Yes. Modern custody orders may provide for video calls and other forms of communication where appropriate, particularly where parents live in different countries.

13. Can the child's wishes override the parents' legal rights?

Not automatically. The child's sufficiently mature wishes are an important factor but must be assessed alongside the overall welfare of the child.

14. Can habeas corpus be used in an international custody dispute?

Yes, in appropriate cases constitutional courts have exercised habeas corpus jurisdiction in child-custody matters. The scope of inquiry depends upon the facts and the child's welfare.

15. Is ordinary residence the same as citizenship?

No. Citizenship concerns nationality or legal status, whereas ordinary residence concerns where the child ordinarily lives. They can point to different countries.

16. Does higher income guarantee custody?

No. Financial capacity is only one consideration. Emotional care, stability, parenting capacity, education, safety and overall welfare may be equally or more important.

17. Can custody arrangements be changed after an order is passed?

Yes, where circumstances materially change and modification is necessary for the child's welfare. *Rosy Jacob* is an important authority for the principle that custody arrangements are not necessarily permanent.

18. What should an NRI parent do before relocating a child to India?

The parent should examine existing custody orders, ordinary residence, foreign proceedings, consent requirements, immigration consequences and applicable Indian and foreign law, and obtain appropriate legal advice before relocation.

24. The Core Legal Position — In a Nutshell

The Supreme Court's international custody jurisprudence can broadly be reduced to five propositions:

1. Personal law matters—but is not the whole answer.

Hindu, Muslim, Christian, Parsi and other applicable legal frameworks may affect parental rights.

2. Natural guardianship does not automatically mean physical custody.

A parent may have guardianship status without being entitled to physical custody.

3. Foreign orders matter—but are not automatically decisive.

Comity is important, but it cannot replace the welfare inquiry.

4. Foreign citizenship and ordinary residence matter—but neither alone determines custody.

The entire factual matrix must be considered.

5. Welfare is paramount.

This remains the controlling principle across the leading authorities.

25. Conclusion: In International Custody, the Child Is the Centre of the Court's Inquiry

International child custody is not simply about which parent wins.

It is about where the child can live safely, develop emotionally, continue education, maintain stability and, where appropriate, preserve meaningful relationships with both parents and both sides of the family.

For Hindu, Muslim, Christian, Parsi, interfaith and Special Marriage Act families, the applicable legal framework may differ. But the central judicial question remains:

What serves the best interests and welfare of this particular child?

The Supreme Court decisions in **Elizabeth Dinshaw, V. Ravi Chandran, Ruchi Majoo, Nithya Anand Raghavan, Lahari Sakhamuri and Yashita Sahu**, read with the broader welfare jurisprudence of **Rosy Jacob, Surinder Kaur Sandhu and Nil Ratan Kundu**, provide the foundation for understanding international child custody in India.

For an NRI parent facing a cross-border custody dispute, early legal advice is critical. Delay in assessing **jurisdiction, ordinary residence, foreign proceedings, existing orders, relocation risks and the child's welfare** can materially affect litigation strategy.

The strongest custody case is not necessarily the case of the parent with the strongest legal entitlement. It is the case that most convincingly demonstrates what is genuinely in the child's best interests.

Key Authorities

- *Gohar Begam v. Suggi alias Nazma Begam*, AIR 1960 SC 93; (1960) 1 SCR 597.
- *Rosy Jacob v. Jacob A. Chakramakkal*, (1973) 1 SCC 840.
- *Surinder Kaur Sandhu v. Harbax Singh Sandhu*, (1984) 3 SCC 698.
- *Elizabeth Dinshaw v. Arvand M. Dinshaw*, (1987) 1 SCC 42.
- *Chandrakala Menon v. Vipin Menon*, (1993) 2 SCC 6.
- *Nil Ratan Kundu v. Abhijit Kundu*, (2008) 9 SCC 413.
- *V. Ravi Chandran (Dr.) v. Union of India*, (2010) 1 SCC 174.
- *Athar Hussain v. Syed Siraj Ahmed*, (2010) 2 SCC 654.
- *Ruchi Majoo v. Sanjeev Majoo*, (2011) 6 SCC 479.
- *Surya Vadanana v. State of Tamil Nadu*, (2015) 5 SCC 450.
- *Nithya Anand Raghavan v. State (NCT of Delhi)*, (2017) 8 SCC 454.
- *Lahari Sakhamuri v. Sobhan Kodali*, (2019) 7 SCC 311.
- *Yashita Sahu v. State of Rajasthan*, (2020) 3 SCC 67.

Disclaimer

This article is intended for general legal information and educational purposes only. NRI and international child-custody disputes are highly fact-specific and may involve multiple jurisdictions, personal-law questions, foreign orders and urgent procedural considerations. Nothing in this article should be treated as legal advice or as a substitute for case-specific advice from a qualified advocate.